

SOTOMAYOR, J., concurring in judgment

may be territorial officers of Puerto Rico when they are not elected or approved, directly or indirectly, by the people of Puerto Rico.

B

Of course, it might be argued that Congress is nevertheless free to repeal its grant of self-rule, including the grant of authority to the island to select its own governmental officers. And perhaps, it might further be said, that is exactly what Congress has done in PROMESA by declaring the Board “an entity within the territorial government” of Puerto Rico. § 101(c)(1), 130 Stat. 553. But that is not so certain.

This Court has “‘repeatedly stated . . . that absent “a clearly expressed congressional intention”’” to repeal, “[a]n implied repeal will only be found where provisions in two statutes are in “irreconcilable conflict,” or where the latter Act covers the whole subject of the earlier one and “is clearly intended as a substitute.”’” *Carcieri v. Salazar*, 555 U.S. 379, 395 (2009) (quoting *Branch v. Smith*, 538 U.S. 254, 273 (2003) (plurality opinion)). Not so, it seems, with PROMESA on the one hand, and Congress’ 1950 and 1952 legislations on the other. As written, PROMESA is a temporary bankruptcy measure intended to assist in restoring Puerto Rico to fiscal security. It is not an organic statute clearly or expressly purporting to renege on Congress’ prior “gran[t to] Puerto Rico [of] a measure of autonomy comparable to that possessed by the States,” *Flores de Otero*, 426 U.S., at 597, nor on the concomitant grant of authority to select officers of its own choosing. It would seem curious to interpret PROMESA as having done so indirectly, simply through its characterization of the Board “as an entity within the territorial government.” § 101(c)(1), 130 Stat. 553.

Further, there is a legitimate question whether Congress could validly repeal any element of its earlier compact with Puerto Rico on its own initiative, even if it had been abundantly explicit in its intention to do so. The truism that

“one Congress cannot bind a later Congress,” *Dorsey v. United States*, 567 U.S. 260, 274 (2012), appears to have its limits: As scholars have noted, certain congressional actions are not subject to recantation. See, *e.g.*, Magruder, *The Commonwealth Status of Puerto Rico*, 15 U. Pitt. L. Rev. 1, 14 (1953) (listing as examples the congressional grant of independence to the Philippine Islands and congressional grant of private title to public lands under homestead laws); Issacharoff, 94 Ind. L. J., at 14 (“Once a Congress has disposed of a territory, of necessity it binds future Congresses to the consequences of that decision”); T. Aleinikoff, *Semblances of Sovereignty: The Constitution, the State, and American Citizenship* 90 (2002) (“The granting of neither statehood nor independence may be revoked, nor may land grants or other ‘vested interests’ be called back by a subsequent Congress”).

Plausible reasons may exist to treat Public Law 600 and the Federal Government’s recognition of Puerto Rico’s sovereignty as similarly irrevocable, at least in the absence of mutual consent. Congress made clear in Public Law 600 that the agreement between the Federal Government and Puerto Rico was “in the nature of a compact.” 64 Stat. 319. That “solemn undertaking, based upon mutual consent, . . . of such profound character between the Federal Government and a community of U. S. citizens,” has struck many as “incompatible with the concept of unilateral revocation.” *E.g.*, Report of the United States-Puerto Rico Commission on the Status of Puerto Rico 12–13 (1966); see also A. Leibowitz, *Defining Status: A Comprehensive Analysis of United States Territorial Relations* 172–173 (1989) (describing how “many in the Congress” understood Public Law 600 to constitute “an irrevocable grant of authority in local affairs with an understanding of mutual consent being required before Congress would resolve the ultimate status question or change the status of the Commonwealth”). Indeed, shortly after Congress approved the Puerto Rico Constitution, federal officials ex-

SOTOMAYOR, J., concurring in judgment

pressly represented to the United Nations that the compact was of a “bilateral nature,” such that its “terms [could] be changed only by common consent.” F. Bolton, U. S. Rep. to the Gen. Assembly, Statement to U. N. Committee IV (Trusteeship) (Nov. 3, 1953), reprinted in 29 Dept. State Bull. 802, 804 (1953); see also Press Release No. 1741, U. S. Mission to the United Nations, Statement by M. Sears, U. S. Rep. in the Comm. on Information From Non-Self Governing Territories 2 (Aug. 28, 1953) (“[A] compact . . . is far stronger than a treaty” because it “cannot be denounced by either party unless it has the permission of the other”).³

All of this presses up against broader questions about Congress’ power under the Territories Clause of Article IV, U. S. Const., Art. IV, §3, cl. 2, the purported source of legislative authority for enacting PROMESA, see § 101(b)(2), 130 Stat. 553; *ante*, at 456. May Congress ever simply cede its power under that Clause to legislate for the Territories, and did it

³In opting to proceed with Puerto Rico’s Commonwealth endeavor by way of compact, Public Law 600 was not entirely without precedent. When Congress enacted the Northwest Ordinance prior to ratification to govern the newly acquired Northwest Territory, it provided for a catalog of fundamental rights, styled as “articles of compact between the original States . . . and the people and States in the said territory” that would “forever remain unalterable, unless by common consent.” Act of Aug. 7, 1789, 1 Stat. 52, n. (a) (reproducing the Northwest Ordinance of 1787). That understanding of a compact between the Federal Government and the Territories was the only extant precedent for the compact language in Public Law 600, and proponents of Public Law 600 were vocal in their reliance on the Northwest Ordinance as a model. See Lawson & Sloane, The Constitutionality of Decolonization by Associated Statehood: Puerto Rico’s Legal Status Reconsidered, 50 Boston College L. Rev. 1123, 1149, n. 142 (2009) (prior to Public Law 600, “[t]he term ‘compact’ . . . had seldom appeared in U. S. law,” with the exception of the Northwest Ordinance and subsequent organic statutes modeled after the Northwest Ordinance); J. Trias Monge, Puerto Rico: The Trials of the Oldest Colony in the World 111 (1997) (discussing debate among the drafters of Public Law 600 about whether to adopt the precise compact language in the Northwest Ordinance).

do so nearly 60 years ago with respect to Puerto Rico? If so, is PROMESA itself invalid, at least insofar as it holds itself out as an exercise of Territories Clause authority? This Court has never squarely addressed such questions, except perhaps to acknowledge that Congress' authority under the Territories Clause may "continu[e] until granted away." *National Bank v. County of Yankton*, 101 U.S. 129, 133 (1880); cf. *Cincinnati Soap Co. v. United States*, 301 U.S. 308, 319 (1937) (recognizing that a statute preparing the Philippine Islands for independence from the United States "brought about a profound change in the status of the islands and in their relations to the United States," such that "the power of the United States has been modified," even while "it has not been abolished").

After all, the Territories Clause provides Congress not only the power to "make all needful Rules and Regulations respecting the Territor[ies]," but also the power to "dispose of" them, which necessarily encompasses the power to relinquish authority to legislate for them. U.S. Const., Art. IV, §3, cl. 2. And some have insisted that the power to cede authority exists no less in the absence of full "dispos[al]" through independence or Statehood. See Aleinikoff, *Semblances of Sovereignty*, at 77 ("It has been strongly argued that" with "the establishment of commonwealth status," "Congress lost general power to regulate the internal affairs of Puerto Rico").

Still, the parties here do not dispute Congress' ability to enact PROMESA under the Territories Clause in the first place; nor does it seem strictly necessary to call that matter into question to resolve the Appointments Clause concern presented here. Despite the "full measure of self-government" the island supposedly enjoys, U. N. Charter, Art. 73; see also *supra*, at 485–486, 489–493, Puerto Rico can well remain a "Territory" subject to some measure of Congress' Territories Clause authority. But even assuming that the Territories Clause thus enables Congress to enact federal

SOTOMAYOR, J., concurring in judgment

laws “respecting” Puerto Rico, U. S. Const., Art. IV, § 3, cl. 2, still some things the Clause does not necessarily do: It does not necessarily allow Congress to repeal by mere implication its prior grant of authority to the people of Puerto Rico to choose their own governmental officers. It does not necessarily give Congress license to revoke unilaterally an instrument that may be altered only with mutual consent. And it does not necessarily permit Congress to declare by fiat that the law must treat its exercise of authority under the Territories Clause as territorial rather than federal, irrespective of the compact it entered with the people of Puerto Rico leaving complete territorial authority to them. Cf. Hernández Colón, *The Evolution of Democratic Governance Under the Territorial Clause of the U. S. Constitution*, 50 *Suffolk U. L. Rev.* 587, 605 (2017) (after 1952, “Congress partially relinquished its territorial powers over Puerto Rico’s *internal* affairs, as recognized in *Sanchez Valle*,” even while “Congress continues to retain territorial powers in *federal* affairs” (emphasis added)).

III

Nor is it significant that Congress has historically provided for the appointment of officers who perform duties related to the Territories through methods other than those prescribed by the Appointments Clause. Those methods may be permissible up to a point in a Territory’s development. But that historical practice does not, in my view, resolve the far more complex question whether Congress can continue to act in that manner indefinitely or long after granting Territories complete self-government.

Essentially none (if any) of the allegedly nonconforming appointments referenced by the parties occurred in circumstances where, as in the case of Puerto Rico, Congress previously granted the Territories complete home rule. See *infra*, at 499–501, and nn. 4–5. Instead, they largely occurred during the initial or transitional stages of a Territory’s existence, when often the terms of the organic statute establish-

ing the Territory expressly provided for the Federal Government to act on behalf of the Territory. (After all, in newly established Territories, no recognized territorial government existed until the organic statute established one.) Because in that state of affairs, an organic statute plainly contemplated that *Congress* had authority to establish offices for the Territory, such congressionally established offices could fairly—indeed, necessarily—be treated as “territorial” to the extent they were tasked with territorial duties.

Does that necessarily remain the case if Congress later grants or establishes complete territorial self-government? As Puerto Rico’s history may demonstrate, it is seemingly at that point that Congress purports to recognize that the Territory itself (not the Federal Government) wields authority over matters of the Territory, including the ability to select its own territorial officers. Perhaps it is also at that point that a distinction between territorial officers and federal officers crystallizes: Territorial officers are those who derive their authority from the people of the Territory; federal officers are those who derive their authority from the Federal Government. And here, the Board members indisputably are selected by the Federal Government, under a statute passed by Congress that specifies not just their governance responsibilities but also the priorities of their decisionmaking. See *ante*, at 453–455.

The scores of historical vignettes highlighted by petitioners, see, *e. g.*, Brief for Petitioner Financial Oversight and Management Board for Puerto Rico 28–33; Brief for Petitioner Official Committee of Retired Employees of the Commonwealth of Puerto Rico 10–17, do not appear to foreclose this possibility or even address the question. Rather, they seem consistent with a broader historical narrative about early territorial development: that Congress has traditionally exercised its power under the Territories Clause with the aim of promptly preparing newly established Territories to transition gradually to territorial self-government. To

SOTOMAYOR, J., concurring in judgment

the extent Congress deviated from the requirements of the Appointments Clause in establishing territorial governments, it generally did so either to facilitate temporary governments in the Territories before self-government was practically possible or to begin transferring appointment authority directly into the hands of the territorial population.

For example, Congress has often provided for territorial officials to be appointed by a (Presidentially nominated and Senate confirmed) territorial Governor, a method that the Appointments Clause does not appear to contemplate. See, *e. g.*, Brief for Petitioner Financial Oversight and Management Board for Puerto Rico 31, and n. 13. But those arrangements arose from the organic statutes establishing the Territories (and thus their initial territorial governments) in the first place.⁴ The same is generally true of instances where Congress provided for Presidential appointment (without Senate confirmation) of territorial officials whose duties might otherwise make them principal officers under the Appointments Clause (requiring Senate confirmation). See, *e. g.*, Brief for Petitioner Official Committee of Retired Employees of the Commonwealth of Puerto Rico 11. Those scenarios broadly conformed with the template of the organic statute establishing the Louisiana Territory, 2 Stat. 245, which Congress passed as an “emergency provisio[n]” shortly after territorial acquisition in order “to preserve order until a proper government could be put in place,” D. Currie, *The Constitution in Congress, The Jeffersonians: 1801–1829*, p. 112 (2001).⁵

⁴ See, *e. g.*, 1 Stat. 51–52, and n. (a) (1789) (Northwest Territory); Act of Feb. 3, 1809, ch. 13, §§ 1, 2, 2 Stat. 514–515 (Illinois); Act of June 4, 1812, § 2, 2 Stat. 744 (Missouri); Act of Feb. 8, 1861, ch. 59, §§ 1, 7, 12 Stat. 172, 174 (Colorado); Act of May 26, 1864, ch. 95, §§ 1, 7, 13 Stat. 85, 88 (Montana); Act of July 25, 1868, ch. 235, §§ 1, 7, 15 Stat. 178, 180 (Wyoming); Act of May 2, 1890, ch. 182, §§ 1, 7, 26 Stat. 81, 85 (Oklahoma).

⁵ See 2 Stat. 245 (1803) (Louisiana) (authorizing the President to “take possession of, and occupy the territory,” to “employ any part of the army and navy of the United States” in doing so, and to establish a “temporary

As for the numerous instances where officers with territorial responsibilities were popularly elected or appointed by territorial officials, see *ante*, at 461–462, Congress typically transitioned to these arrangements after establishing an initial territorial government. The Northwest Ordinance, for example, allowed the Governor to appoint “magistrates and other civil officers” “during the continuance of [a] temporary government” established at the outset of the Northwest Territory’s existence, as “necessary for the preservation of the peace and good order.” Act of Aug. 7, 1789, ch. 8, 1 Stat. 51, n. (a). As soon as the Territory met a certain population threshold, however, the territorial population was to directly elect members of the lower house of the territorial legislature, which would in turn play a role in selecting the civil officers of the territorial government. *Ibid.* Following the Northwest Ordinance’s lead, the organic statutes for many subsequent territories contemplated similar arrangements for “transition[ing]” quickly to forms of “representative government.” J. Eblen, *The First and Second United States Empires: Governors and Territorial Government, 1784–1912*, pp. 54, 59 (1968); see also Leibowitz, *Defining Status*, at 6–7.

Congress’ provision of limited or incremental home-rule measures, moreover, seems to reveal little about the restrictions the Appointments Clause imposes on officers selected by the Federal Government. By definition, selection by home rule does not track the methods outlined in the Appointments Clause. But perhaps that is because home-rule measures give to the Territory the ability to select its own

government” “until . . . provision for the temporary government . . . be sooner made by Congress”); cf. 3 Stat. 524 (1819) (Florida) (similar); 31 Stat. 910 (1901) (Philippines) (authorizing the establishment of a “temporary government” pending “the establishment of permanent civil government”); 33 Stat. 429 (1904) (Panama Canal Zone) (authorizing the President “[t]o provide for the temporary government” of the Territory “until . . . provision for the temporary government . . . be sooner made by Congress”).

SOTOMAYOR, J., concurring in judgment

governing officers, which by necessity are territorial rather than federal. That the Territory selects its own governing officers, and that these officers are necessarily territorial, does not obviously imply that Congress may disregard the Appointments Clause when it later provides for the Federal Government to select officers carrying out territorial responsibilities.⁶

In all, then, it is not particularly surprising that many of officers who acted for the Territories historically were appointed in a manner other than that set out in the Appointments Clause. Viewed in proper historical context, those officers' appointments may reflect nothing more than the necessary incidents of the transition to and establishment of full territorial self-government. For the overwhelming majority of Territories in this Nation's history, of course, that turning point coincided with Statehood. See Leibowitz, *Defining Status*, at 6–8 (describing the “transitory nature” of the early Territories’ “evolutionary process culminat[ing] in Statehood” and “the establishment of popular self-government”); *District of Columbia v. Carter*, 409 U. S. 418, 431–432 (1973) (“From the moment of their creation, the Territories were destined for admission as States into the Union, and ‘as a preliminary step toward that foreordained end—to tide over the period of ineligibility—Congress, from time to time, created territorial governments, the existence of which was necessarily limited’” (quoting *O’Donoghue v. United States*, 289 U. S. 516, 537 (1933))). But critically, the transitional phase was never intended to last indefinitely. See Amar, *America’s Constitution*, at 273 (describing the Founders’ understanding that “[t]he older states would help their younger siblings grow up and would thereafter regard them as equals, rather than as permanent adolescents—the

⁶ For that reason, no unavoidable tension seems to exist between requiring compliance with the Appointments Clause for the Board members and preserving complete home rule in Puerto Rico (or, for that matter, any of the other Territories).

status to which Mother England had wrongly relegated her own New World wards”). The historical examples thus reveal little, if anything, about Congress’ ability to establish territorial officers in Territories that (much like Puerto Rico) have long operated under the full measure of self-government.

This Court’s precedents do not speak to that circumstance either. No doubt the Court has said that the Territories Clause gives Congress “full and complete legislative authority over the people of the Territories and all the departments of the territorial governments.” *County of Yankton*, 101 U. S., at 132–133; see also *id.*, at 133 (“Congress may not only abrogate laws of the territorial legislatures, but it may itself legislate directly for the local government”); *Sere v. Pitot*, 6 Cranch 332, 337 (1810); *ante*, at 474–475 (THOMAS, J., concurring in judgment). But none of those cases had to do with the Appointments Clause. More important, none of them addressed the scope of Congress’ authority with respect to a fully self-governing Territory. See Leibowitz, *Defining Status*, at 15 (observing that “the broad statements of Congressional power” in those cases “were made in the context of a territory’s evolution toward statehood,” and that “[t]his context was the ‘restriction . . . necessarily implied in its terms’”). Much less do those cases inform whether and how Congress may validly act on behalf of a Territory like Puerto Rico, as to which Congress has expressly (and perhaps irrevocably in the absence of common consent) “relinquished . . . control over [territorial] affairs.” *Flores de Otero*, 426 U. S., at 597; see also *Rodriguez*, 457 U. S., at 8 (describing Puerto Rico as “an autonomous political entity, ‘sovereign over matters not ruled by the [Federal] Constitution’” (quoting *Calero-Toledo*, 416 U. S., at 673)). Indeed, as the same cases expressly acknowledged, Congress’ authority under the Territories Clause may “continu[e]” only “until granted away.” *County of Yankton*, 101 U. S., at 133; see also *supra*, at 495–496.

SOTOMAYOR, J., concurring in judgment

* * *

These cases raise serious questions about when, if ever, the Federal Government may constitutionally exercise authority to establish territorial officers in a Territory like Puerto Rico, where Congress seemingly ceded that authority long ago to Puerto Rico itself. The 1950s compact between the Federal Government and Puerto Rico undoubtedly carried ramifications for Puerto Rico's status under federal and international law; the same may be true of the Appointments Clause analysis here. After all, the long-awaited promise of Public Law 600's compact between Puerto Rico and the Federal Government seemed to be that the people of Puerto Rico may choose their own territorial officers, rather than have such officers foisted on the Territory by the Federal Government.

Viewed against that backdrop, the result of these cases seems anomalous. The Board members, tasked with determining the financial fate of a self-governing Territory, exist in a twilight zone of accountability, neither selected by Puerto Rico itself nor subject to the strictures of the Appointments Clause. I am skeptical that the Constitution countenances this freewheeling exercise of control over a population that the Federal Government has explicitly agreed to recognize as operating under a government of their own choosing, pursuant to a constitution of their own choosing. Surely our Founders, having labored to attain such recognition of self-determination, would not view that same recognition with respect to Puerto Rico as a mere act of grace. Nevertheless, because these issues are not properly presented in these cases, I reluctantly concur in the judgment.

Syllabus

BANISTER *v.* DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION

CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE FIFTH CIRCUIT

No. 18–6943. Argued December 4, 2019—Decided June 1, 2020

Federal Rule of Civil Procedure 59(e) allows a litigant to file a motion to alter or amend a district court’s judgment within 28 days from the entry of judgment, with no possibility of an extension. The Rule enables a district court to “rectify its own mistakes in the period immediately following” its decision, *White v. New Hampshire Dept. of Employment Security*, 455 U. S. 445, 450, but not to address new arguments or evidence that the moving party could have raised before the decision. A timely filed motion suspends the finality of the original judgment for purposes of appeal, and only the district court’s disposition of the motion restores finality and starts the 30-day appeal clock. If an appeal follows, the ruling on the motion merges with the original determination into a single judgment.

Title 28 U. S. C. § 2244(b), the so-called gatekeeping provision of the Antiterrorism and Effective Death Penalty Act of 1996 (AEDPA), governs federal habeas proceedings. Under AEDPA, a state prisoner is entitled to one fair opportunity to seek federal habeas relief from his conviction. Section 2244(b), however, sets stringent limits on second or successive habeas applications. Among those restrictions, a prisoner may not reassert any claims “presented in a prior application,” § 2244(b)(1), and may bring a new claim only in limited situations. Because habeas proceedings are civil in nature, the Federal Rules of Civil Procedure generally apply, but statutory habeas restrictions, including § 2244(b), trump any “inconsistent” Rule. § 2254 Rule 12.

Petitioner Gregory Banister was convicted by a Texas court of aggravated assault and sentenced to 30 years in prison. After exhausting his state remedies, he filed for federal habeas relief, which the District Court denied. Banister timely filed a Rule 59(e) motion, which the District Court also denied. He then filed a notice of appeal in accordance with the timeline for appealing a judgment after the denial of a Rule 59(e) motion. But the Fifth Circuit construed Banister’s Rule 59(e) motion as a successive habeas petition and dismissed his appeal as untimely.

Syllabus

Held: Because a Rule 59(e) motion to alter or amend a habeas court's judgment is not a second or successive habeas petition under 28 U. S. C. § 2244(b), Banister's appeal was timely. Pp. 511–521.

(a) The phrase “second or successive application” is a term of art and does not “simply ‘refe[r]’” to all habeas filings made “‘second or successively in time,’” following an initial application. *Magwood v. Patterson*, 561 U. S. 320, 332. In addressing what qualifies as second or successive, this Court has looked to historical habeas doctrine and practice and AEDPA's purposes. Here, both point toward permitting Rule 59(e) motions in habeas proceedings.

Prior to AEDPA, the Court held in *Browder v. Director, Dept. of Corrections of Ill.*, 434 U. S. 257, that Rule 59(e) applied in habeas proceedings. The Rule, the Court recounted, derived from courts' common-law power “to alter or amend [their] own judgments during[] the term of court in which [they were] rendered,” prior to any appeal, including “in habeas corpus cases.” *Id.*, at 270. Although the drafters of the Federal Rules eventually replaced the “term of court” power with Rule 59(e), the Court concluded that this did nothing to narrow the set of judgments amenable to alteration. The record of judicial decisions accords with that view. Pre-AEDPA, habeas courts were to dismiss repetitive applications except in “rare case[s].” *Kuhlmann v. Wilson*, 477 U. S. 436, 451. Yet in the half century from Rule 59(e)'s adoption through *Browder* to AEDPA's enactment, there exists only one dismissal of a Rule 59(e) motion as impermissibly successive. In all other cases, the district courts resolved Rule 59(e) motions on the merits.

Congress passed AEDPA against this backdrop, and gave no indication that it meant to change what qualifies as a successive application. Nor do AEDPA's purposes of reducing delay, conserving judicial resources, and promoting finality suggest any different result. Rule 59(e) offers a narrow, 28-day window to ask for relief; limits requests for reconsideration to matters properly raised in the challenged judgment; and consolidates proceedings by producing a single final judgment for appeal. Indeed, the Rule may make habeas proceedings more efficient by enabling a district court to reverse a mistaken judgment or to clarify its reasoning so as to make an appeal unnecessary. Pp. 511–517.

(b) *Gonzalez v. Crosby*, 545 U. S. 524, which held that a Rule 60(b) motion counts as a second or successive habeas application if it “attacks the federal court's previous resolution of a claim on the merits,” *id.*, at 532, does not alter that conclusion. Rule 60(b) differs from Rule 59(e) in just about every way that matters here. Whereas Rule 59(e) derives from a common-law court's plenary power to revise its judgment before anyone could appeal, Rule 60(b) codifies various writs used to collater-

Syllabus

ally attack a court's already completed judgment. That distinction was not lost on pre-AEDPA habeas courts, which routinely dismissed Rule 60(b) motions for raising repetitive claims. Next, the Rules' modern-day operations also diverge, with only Rule 60(b) undermining AEDPA's scheme to prevent delay and protect finality. That is because a Rule 60(b) motion, which can arise long after the denial of a prisoner's initial petition, generally goes beyond pointing out alleged errors in the just-issued decision. Still more, a Rule 60(b) motion "does not affect the [original] judgment's finality or suspend its operation" and is appealable as "a separate final order." *Stone v. INS*, 514 U. S. 386, 401. Left unchecked, a Rule 60(b) motion threatens serial habeas litigation, while a Rule 59(e) motion is a one-time effort to point out alleged errors in a just-issued decision before taking a single appeal. Pp. 517–521.

Reversed and remanded.

KAGAN, J., delivered the opinion of the Court, in which ROBERTS, C. J., and GINSBURG, BREYER, SOTOMAYOR, GORSUCH, and KAVANAUGH, JJ., joined. ALITO, J., filed a dissenting opinion, in which THOMAS, J., joined, *post*, p. 521.

Brian T. Burgess argued the cause for petitioner. With him on the briefs were *Andrew Kim* and *Gerard J. Cedrone*.

Kyle D. Hawkins, Solicitor General of Texas, argued the cause for respondent. With him on the brief were *Ken Paxton*, Attorney General of Texas, *Jeffrey C. Mateer*, First Assistant Attorney General, *Matthew H. Frederick*, Deputy Solicitor General, *Natalie D. Thompson*, Assistant Solicitor General, and *Trevor W. Ezell*, Assistant Attorney General.

Benjamin W. Snyder argued the cause for the United States as *amicus curiae* urging affirmance. With him on the brief were *Solicitor General Francisco*, *Assistant Attorney General Benczkowski*, *Eric J. Feigin*, and *Ann O'Connell Adams*.*

*Briefs of *amici curiae* urging reversal were filed for Law Professors with Expertise in Habeas Corpus et al. by *Charlotte H. Taylor*, *Kamaile A. N. Turčan*, and *Lee Kovarsky*, *pro se*; and for the National Association of Criminal Defense Lawyers by *Barbara E. Bergman*.

A brief of *amici curiae* urging affirmance was filed for the State of Indiana et al. by *Curtis T. Hill, Jr.*, Attorney General of Indiana, *Thomas M. Fisher*, Solicitor General, *Kian J. Hudson*, Deputy Solicitor General, and *Julia C. Payne* and *Robert L. Yates*, Deputy Attorneys General, and

Opinion of the Court

JUSTICE KAGAN delivered the opinion of the Court.

A state prisoner is entitled to one fair opportunity to seek federal habeas relief from his conviction. But he may not usually make a “second or successive habeas corpus application.” 28 U. S. C. § 2244(b). The question here is whether a motion brought under Federal Rule of Civil Procedure 59(e) to alter or amend a habeas court’s judgment qualifies as such a successive petition. We hold it does not. A Rule 59(e) motion is instead part and parcel of the first habeas proceeding.

I

This case is about two procedural rules. First, Rule 59(e) applies in federal civil litigation generally. (Habeas proceedings, for those new to the area, are civil in nature. See *Fisher v. Baker*, 203 U. S. 174, 181 (1906).) The Rule enables a party to request that a district court reconsider a just-issued judgment. Second, the so-called gatekeeping provision of the Antiterrorism and Effective Death Penalty Act of 1996 (AEDPA), codified at 28 U. S. C. § 2244(b), governs federal habeas proceedings. It sets stringent limits on second or successive habeas applications. We say a few words about each before describing how the courts below applied them here.

A

Rule 59(e) allows a litigant to file a “motion to alter or amend a judgment.”¹ The time for doing so is short—28 days from entry of the judgment, with no possibility of an

by the Attorneys General for their respective States as follows: *Steve Marshall* of Alabama, *Ashley Moody* of Florida, *Christopher M. Carr* of Georgia, *Clare E. Connors* of Hawaii, *Lawrence G. Wasden* of Idaho, *Derek Schmidt* of Kansas, *Jeff Landry* of Louisiana, *Timothy C. Fox* of Montana, *Douglas J. Peterson* of Nebraska, *Dave Yost* of Ohio, *Mike Hunter* of Oklahoma, *Alan Wilson* of South Carolina, *Jason R. Ravensborg* of South Dakota, and *Herbert H. Slatery III* of Tennessee.

¹The complete text of the Rule reads: “A motion to alter or amend a judgment must be filed no later than 28 days after the entry of the judgment.”

Opinion of the Court

extension. See Fed. Rule Civ. Proc. 6(b)(2) (prohibiting extensions to Rule 59(e)'s deadline). The Rule gives a district court the chance "to rectify its own mistakes in the period immediately following" its decision. *White v. New Hampshire Dept. of Employment Security*, 455 U.S. 445, 450 (1982). In keeping with that corrective function, "federal courts generally have [used] Rule 59(e) only" to "reconsider[] matters properly encompassed in a decision on the merits." *Id.*, at 451. In particular, courts will not address new arguments or evidence that the moving party could have raised before the decision issued. See 11 C. Wright, A. Miller, & M. Kane, *Federal Practice and Procedure* §2810.1, pp. 163–164 (3d ed. 2012) (Wright & Miller); accord, *Exxon Shipping Co. v. Baker*, 554 U.S. 471, 485–486, n. 5 (2008) (quoting prior edition).² The motion is therefore tightly tied to the underlying judgment.

The filing of a Rule 59(e) motion within the 28-day period "suspends the finality of the original judgment" for purposes of an appeal. *FCC v. League of Women Voters of Cal.*, 468 U.S. 364, 373, n. 10 (1984) (internal quotation marks and alterations omitted). Without such a motion, a litigant must take an appeal no later than 30 days from the district court's entry of judgment. See Fed. Rule App. Proc. (FRAP) 4(a)(1)(A). But if he timely submits a Rule 59(e) motion, there is no longer a final judgment to appeal from. See *Osterneck v. Ernst & Whinney*, 489 U.S. 169, 174 (1989). Only the disposition of that motion "restores th[e] finality" of the original judgment, thus starting the 30-day appeal clock. *League of Women Voters*, 468 U.S., at 373, n. 10 (internal quotation marks omitted); see FRAP 4(a)(4)(A)(iv) (A party's "time to file an appeal runs" from "the entry of the order

²By contrast, courts may consider new arguments based on an "intervening change in controlling law" and "newly discovered or previously unavailable evidence." 11 Wright & Miller §2810.1, at 161–162 (3d ed. 2012). But it is rare for such arguments or evidence to emerge within Rule 59(e)'s strict 28-day timeframe.

Opinion of the Court

disposing of the [Rule 59(e)] motion”). And if an appeal follows, the ruling on the Rule 59(e) motion merges with the prior determination, so that the reviewing court takes up only one judgment. See 11 Wright & Miller §2818, at 246; *Foman v. Davis*, 371 U. S. 178, 181 (1962). The court thus addresses any attack on the Rule 59(e) ruling as part of its review of the underlying decision.

Now turn to §2244(b)’s restrictions on second or successive habeas petitions. Under AEDPA, a state prisoner always gets one chance to bring a federal habeas challenge to his conviction. See *Magwood v. Patterson*, 561 U. S. 320, 333–334 (2010). But after that, the road gets rockier. To file a second or successive application in a district court, a prisoner must first obtain leave from the court of appeals based on a “prima facie showing” that his petition satisfies the statute’s gatekeeping requirements. 28 U. S. C. §2244(b)(3)(C). Under those provisions, which bind the district court even when leave is given, a prisoner may not reassert any claims “presented in a prior application.” §2244(b)(1). And he may bring a new claim only if it falls within one of two narrow categories—roughly speaking, if it relies on a new and retroactive rule of constitutional law or if it alleges previously undiscoverable facts that would establish his innocence. See §2244(b)(2). Still more: Those restrictions, like all statutes and rules pertaining to habeas, trump any “inconsistent” Federal Rule of Civil Procedure otherwise applicable to habeas proceedings. 28 U. S. C. §2254 Rule 12.

B

This case began when, nearly two decades ago, petitioner Gregory Banister struck and killed a bicyclist while driving a car. Texas charged him with the crime of aggravated assault with a deadly weapon. A jury found him guilty, and he was sentenced to 30 years in prison. State courts upheld the conviction on direct appeal and in collateral proceedings. Banister then turned to federal district court for habeas re-

Opinion of the Court

lief. Although raising many claims, his petition mainly argued that his trial and appellate counsel provided him with constitutionally ineffective assistance. The District Court disagreed and entered judgment denying the application.

At that point, Banister timely filed a Rule 59(e) motion asking the District Court to alter its judgment. Consistent with the Rule's corrective purpose, Banister urged the court to fix what he saw as "manifest errors of law and fact." App. 219. Five days later and without requiring a response from the State, the court issued a one-paragraph order explaining that it had reviewed all relevant materials and stood by its decision. See *id.*, at 254. In accordance with the timeline for appealing a judgment after the denial of a Rule 59(e) motion, see *supra*, at 508, Banister then filed a notice of appeal (along with a request for a certificate of appealability) to challenge the District Court's rejection of his habeas application.

Yet the Court of Appeals for the Fifth Circuit dismissed the appeal as untimely. That ruling rested on the view that Banister's Rule 59(e) motion, although captioned as such, was not really a Rule 59(e) motion at all. Because it "attack[ed] the federal court's previous resolution of [his] claim on the merits," the Fifth Circuit held that the motion must be "construed as a successive habeas petition." App. 305 (internal quotation marks omitted). In any future case, that holding would prohibit a habeas court from considering claims made in a self-styled Rule 59(e) motion except in rare circumstances—that is, when a court of appeals gave permission and the claim fell within one of § 2244(b)'s two slender categories. See *supra*, at 509. In Banister's own case, that bar was of no moment because the District Court had already addressed his motion's merits. But viewing a Rule 59(e) motion as a successive habeas petition also had another consequence, and this one would affect him. Unlike a Rule 59(e) motion, the Court of Appeals noted, a successive habeas application does not postpone the time to file an appeal.

Opinion of the Court

That meant the clock started ticking when the District Court denied Banister’s habeas application (rather than his subsequent motion)—and so Banister’s appeal was several weeks late.

We granted certiorari to resolve a Circuit split about whether a Rule 59(e) motion to alter or amend a habeas court’s judgment counts as a second or successive habeas application. 588 U. S. 905 (2019). We hold it does not, and reverse.

II

This case requires us to choose between two rules—more specifically, to decide whether AEDPA’s §2244(b) displaces Rule 59(e) in federal habeas litigation. The Federal Rules of Civil Procedure generally govern habeas proceedings. See Fed. Rule Civ. Proc. 81(a)(4). They give way, however, if and to the extent “inconsistent with any statutory provisions or [habeas-specific] rules.” 28 U. S. C. §2254 Rule 12; see *supra*, at 509. Here, the Fifth Circuit concluded and Texas now contends that AEDPA’s limitation of repetitive habeas applications conflicts with Rule 59(e)’s ordinary operation. That argument in turn hinges on viewing a Rule 59(e) motion in a habeas case as a “second or successive application.” §2244(b); see Brief for Respondent 10. If such a motion constitutes a second or successive petition, then all of §2244(b)’s restrictions kick in—limiting the filings Rule 59(e) would allow. But if a Rule 59(e) motion is not so understood—if it is instead part of resolving a prisoner’s first habeas application—then §2244(b)’s requirements never come into the picture.

The phrase “second or successive application,” on which all this rides, is a “term of art,” which “is not self-defining.” *Slack v. McDaniel*, 529 U. S. 473, 486 (2000); *Panetti v. Quarterman*, 551 U. S. 930, 943 (2007). We have often made clear that it does not “simply ‘refer’” to all habeas filings made “‘second or successively in time,’” following an initial application. *Magwood*, 561 U. S., at 332 (quoting *Panetti*, 551

Opinion of the Court

U. S., at 944 (alteration omitted)). For example, the courts of appeals agree (as do both parties) that an amended petition, filed after the initial one but before judgment, is not second or successive. See 2 R. Hertz & J. Liebman, *Federal Habeas Corpus Practice and Procedure* §28.1, pp. 1656–1657, n. 4 (7th ed. 2017) (collecting cases); Brief for Petitioner 20–21; Brief for Respondent 16. So too, appeals from the habeas court’s judgment (or still later petitions to this Court) are not second or successive; rather, they are further iterations of the first habeas application.³ Chronology here is by no means all.

In addressing what qualifies as second or successive, this Court has looked for guidance in two main places. First, we have explored historical habeas doctrine and practice. The phrase “second or successive application,” we have explained, is “given substance in our prior habeas corpus cases,” including those “predating [AEDPA’s] enactment.” *Slack*, 529 U. S., at 486; *Panetti*, 551 U. S., at 944; see *id.*, at 943 (stating that the phrase “takes its full meaning from our case law”). In particular, we have asked whether a type of later-in-time filing would have “constituted an abuse of the writ, as that concept is explained in our [pre-AEDPA] cases.” *Id.*, at 947. If so, it is successive; if not, likely not. Second, we have considered AEDPA’s own purposes. The point of §2244(b)’s restrictions, we have stated, is to “conserve judicial resources, reduc[e] piecemeal litigation,” and “lend[] finality to state court judgments within a reasonable time.” *Id.*, at 945–946 (internal quotation marks omitted). With those goals in mind, we have considered “the implications for habeas practice” of allowing a type of filing, to assess

³ For additional examples, see *Slack v. McDaniel*, 529 U. S. 473, 487 (2000) (allowing a prisoner to file a second-in-time, post-judgment application to assert claims earlier dismissed for failure to exhaust), and *Stewart v. Martinez-Villareal*, 523 U. S. 637, 643–644 (1998) (permitting a prisoner to file a second-in-time, post-judgment application to argue that he was incompetent to be executed).